

TENTATIVE RULINGS

DEPARTMENT N17

Judge Craig L. Griffin

Date: December 4, 2023
Time: 2:00PM

If you are submitting to the tentative, please call the Clerk at (657) 622-5617.

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#	Case Name	Tentative
1	Roberson v. G & M Oil Company, Inc.	O/C
2	Romero v. Ford Motor Co.	O/C
3	Alonso vs. JCR Aircraft Deburring	Plaintiff Maria Alonso's ("Plaintiff") Motion to Compel ("Motion") Non-party Compliance with a Deposition Subpoena is DENIED without prejudice. As with the prior version of this Motion, it was not properly served on non-party Labor Law Employer Defense Corporation ("LLEDC"). Service of motions on a non-party must be made via personal service unless otherwise agreed to. (CRC Rule 3.1346.) Here, the Motion was served on LLEDC via mail and via email to LLEDC's "webmaster." Neither of these constitutes personal service. There is no evidence LLEDC agreed to receive motions via mail or email. LLEDC did not provide any response to the Motion, which also suggests it was not properly served. The Motion is once again denied without prejudice due to improper service.

		Plaintiff to give notice.
4	Giunta v. Village West Dallas Development	O/C
5	Jahangiri v. Vahidramezani	O/C
6	Hernandez v. Smart & Final Stores LLC	The motion by Smart & Final Stores, LLC to reclassify the action filed by plaintiff Maria Hernandez from unlimited civil to limited civil is GRANTED. The governing standard for reclassifying unlimited to limited jurisdiction is found in <i>Walker v. Superior Court</i> (1991) 53 Cal.3d 257. There, the Supreme Court stated the trial court must conclude that resolution of the action will <i>necessarily</i> fall short of the jurisdictional minimum before transferring a case from limited to unlimited jurisdiction, i.e., that a greater recovery “could not be obtained” or is “virtually unobtainable.” <i>Id.</i> at p. 269-270. Appellate courts have underscored the high threshold set by <i>Walker</i>: “[The plaintiff] may well not prevail on the factual disputes regarding the extent of his injuries But a [<i>Walker</i>] hearing is not to be perceived as a minitrial or an opportunity for a trial judge to put forth a well-educated guess of a verdict. The <i>unlikelihood</i> of a judgment in excess of \$25,000 is <i>not the test</i>. The trial court reviews the record to determine whether the result is obtainable. Simply stated, the trial court looks to the possibility of a jurisdictionally appropriate verdict, not to its probability.” <i>Maldonado v. Superior Court</i> (1996) 45 Cal.App.4th 397, 402, original italics; see also <i>Ytuarte v. Superior Court</i> (2005) 129 Cal.App.4th 266, 270; <i>Singer v. Superior Court</i> (1999) 70 Cal.App.4th 1315, 1317; <i>Andre v. Superior Court</i> (1991) 2 Cal.App.4th 11, 19. Here, on 4/13/20 plaintiff tripped on a pallet cart at Smart & Final and sustained a 1.5cm abrasion to her shin that healed. There is no indication of any residual scar from the abrasion. As a result of the fall, she also sustained pain to her entire left side. Although plaintiff went to a local clinic for the abrasion, she never mentioned the pain in her side. The total medical specials are apparently only \$40 and there is no indication of any proposed future treatment. There is no claim for loss of income. While plaintiff asserts that she has ongoing complaints of pain on her left side, there is no indication that a health care provider has made causal connection to the subject incident or otherwise documented the symptoms. In fact, in the 3 ½ years since the incident, the plaintiff has never been to a doctor for treatment of, nor mentioned to any health care provider, that she had pain in her side. Plaintiff’s reference to covid restrictions does not explain the failure to seek treatment during the past year. While plaintiff points out that there can be cases where economic damages are waived and the verdict on general damages exceeds